

Multiple Choice (10 marks)

1. The _____ School of jurisprudence maintains that the law is shaped by logic.
 - (a) Historical
 - (b) Analytical
 - (c) Command
 - (d) Sociological
2. What is the purpose of politics, according to Aristotle?
 - (a) To advance the interests of politicians.
 - (b) To produce virtuous citizens and encourage righteousness in individuals.
 - (c) To obtain power.
 - (d) To secure justice by abolishing slavery.
3. Why is there an increasing recognition that retribution is a fundamental element of punishment?
 - (a) Because rehabilitation of offenders presumes a recognition of the role of vengeance.
 - (b) Because the lex talionis is misguided.
 - (c) Because other justifications appear to have failed.
 - (d) Because revenge is anachronistic.
4. Hart's analysis of law distinguishes between
 - (a) Cause and effect
 - (b) Theory and fact
 - (c) Being obliged and having an obligation
 - (d) Corporeal and incorporeal rights
5. Which rule of jus cogens was the first to be accepted explicitly as such by the ICJ?
 - (a) The prohibition of the use of force
 - (b) The prohibition of torture
 - (c) The prohibition of genocide
 - (d) The principle of self-determination

True / False (10 marks)

Answer True or False

6. True or False: Jeremy Bentham famously criticized the concept of natural rights, referring to it as 'nonsense on stilts.'
7. True or False: Recognition requires a formal declaration by the newly-created State to be considered valid.
8. True or False: Principles are legislative tools, whereas policies serve as precedents in legal decision-making.
9. True or False: Leopold Pospisil identifies 'sanction' as one of the four elements manifested by law.
10. True or False: Olivecrona's psychological explanation of law lacks empirical evidence to support its claims.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss Rousseau's assertion that the "Social Contract is not a historical fact but a hypothetical construction of reason." Analyze its implications for constitutional law and governance.
12. Discuss the implications of allowing a reservation to the definition of torture in the ICCPR, focusing on its compatibility with the treaty's object and purpose in contemporary legal practice.

End of Paper